

Accordingly, the motion must be denied.¹

16. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
HEARING IN RE: JOINDER IN DEFENDANT DAVID ECKERT'S MOTION TO BIFURCATE TRIAL FILED 8/19/26 BY DEFENDANT BAYWOODS HOMEOWNERS ASSOCIATION AND HOMEOWNERS MANAGEMENT CO.
FILED BY: BAYWOODS HOMEOWNERS ASSOC.
TENTATIVE RULING:

Off calendar pursuant to moving party's request.

17. 9:00 AM CASE NUMBER: N25-0867
CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC
***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**
FILED BY:
TENTATIVE RULING:

At this time, through a combination of filings, it is clear that the three claimants: Susan Mechtel, Robert I. Reed, and Rebecca L. Lewis are the only three individuals entitled to the surplus funds. Through the combination of filings, it is also clear that each of these individuals is conceded by the others to be entitled to the surplus funds, and in the same proportion. The Court therefore approves the claim and authorizes distribution to each of these three individuals of one third of the surplus funds in this matter.

18. 9:00 AM CASE NUMBER: N26-0639
CASE NAME: MILLER STARR REGALIA VS. MOD SUPER FAST PIZZA (CALIFORNIA), LLC
HEARING ON PETITION IN RE: PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD
FILED BY: MILLER STARR REGALIA
TENTATIVE RULING:

Before the Court is Petitioner Miller Starr Regalia's Petition to Confirm Contractual Arbitration Award against MOD Super Fast Pizza (California), LLC. No opposition has been filed. After a review of the

¹ As a result of this determination, the Court does not need to address the issues of the 5-year rule and Plaintiff's proposal for case management. As an initial matter, the length of the trial is irrelevant to the deadline for commencing the trial. For the purposes of Code Civil Procedure section 583.310, an action is "brought to trial" if, in a jury case, the jury has been impaneled. (*Hartman v. Santamarina* (1982) 30 Cal.3d 762, 765-767, 765 n.3.) A jury is "impaneled and sworn" when a panel of prospective jurors assembles in a courtroom for voir dire and is sworn to tell the truth. (*Stueve v. Nemer* (2017) 7 Cal.App.5th 746, 750-755.) On the other hand, the Court is surprised that by the obvious impracticability of Plaintiff's proposal, as staff and the Court herself have myriad other obligations that continue throughout a jury trial and make a 9am jury start time impossible.

filings, all requirements of Code of Civil Procedure section 1285 et seq. appear to have been satisfied. The Court therefore **grants** the Petition, confirming the Final Award of \$196,889.40 plus interest.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02215

CASE NAME: ROBERT VARAO VS. MATTHEW TINDALL

***HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF DEFENDANT MATTHEW A. TINDALL**

FILED BY: VARAO, ROBERT E.

TENTATIVE RULING:

Plaintiff Robert Varao seeks to compel the deposition of Defendant Matthew Tindall. The Court received no timely response.

The un rebutted facts show that Tindall has twice failed to appear for a noticed deposition. Although there were disputes about the scheduling of the first deposition, he agreed to appear for the second. Tindall is in violation of Code of Civil Procedure section 2025.280(a). Pursuant to Code of Civil Procedure section 2025.450(a), the Court will order Tindall to appear for deposition within 10 days of this Order.

Varao also seeks sanctions. Code Civ. Pro. § 2025.450(g)(1). He has provided information sufficient to support the imposition of \$5,079.78 in sanctions, against Defendant Tindall, payable to counsel for Varao within 30 days of this order.

20. 9:01 AM CASE NUMBER: C26-00435

CASE NAME: WHITNEY YAN VS. CHARLES LI

***HEARING ON MOTION FOR DISCOVERY COMPEL APPEARANCE AT TESTIMONY**

FILED BY: LI, CHARLES

TENTATIVE RULING:

Defendant Charles Li seeks to compel Plaintiff Whitney Yan's deposition. Plaintiff Yan argues that the motion be denied because Yan has not refused to be deposed, but cannot be deposed at this time due to illness.

Li's briefing contains substantial information about other individuals and other cases. This documentation is all hearsay and will not be considered on this Motion. While the Court is sensitive to medical issues, Li correctly identifies that Yan's note from his oncologist is unsigned and additionally does not explain why Yan cannot participate in a remote deposition. Nor does the note give a time frame during which Yan is actively in chemotherapy. Yan argues that written discovery could accomplish the same goals. This argument both contradicts Yan's premise that he is *not* refusing to appear for deposition, and ignores that Li is entitled to proceed reasonably through all appropriate forms of discovery in whichever order he deems proper.